

ENTERPRISE SOFTWARE & DATA LIABILITY AGREEMENT

THIS AGREEMENT contains HIGH-RISK commercial, legal, financial, and compliance obligations.

This Agreement is entered into between:

BlackStone Financial Intelligence Ltd ("Client")

AND

Quantum Risk Systems Pvt Ltd ("Vendor")

----- SECTION 1 – PAYMENT DEFAULT & PENALTIES -----

Client must pay all invoices within 5 business days.

Failure to pay within the due period shall result in:

- Immediate service suspension
- 28% annual penalty interest
- Legal debt recovery proceedings
- Permanent account restrictions
- Additional compliance investigation fees

Vendor reserves the right to report unpaid balances to:

- regulatory agencies
- financial monitoring authorities
- third-party recovery organizations

Late payment shall be treated as material breach of contract.

----- SECTION 2 – TERMINATION RIGHTS -----

Vendor may terminate this Agreement WITHOUT NOTICE if:

- suspicious financial activity is detected
- fraud indicators appear
- compliance violations occur
- payment obligations are missed
- unauthorized system access is identified

Upon termination:

- all user access is revoked immediately
- stored documents may become inaccessible
- refunds shall NOT be issued
- pending balances become immediately payable

Client waives any claim for damages arising from account suspension.

----- SECTION 3 – LIABILITY DISCLAIMER -----

Vendor shall NOT be liable for:

- financial losses
- AI prediction errors
- incorrect risk scores

- investment losses
- regulatory fines
- compliance failures
- indirect damages
- operational interruption
- data corruption
- cyberattacks
- ransomware incidents

Client accepts FULL responsibility for all business decisions based on AI-generated analysis.

Maximum Vendor liability shall NOT exceed the previous 30 days of paid subscription fees.

SECTION 4 – CONFIDENTIALITY & DATA EXPOSURE

Unauthorized disclosure of confidential information shall result in:

- immediate legal action
- financial damages
- compliance escalation
- regulatory reporting
- criminal investigation where applicable

Vendor may monitor uploaded documents for:

- fraud detection
- suspicious transactions
- cybersecurity threats
- policy violations

Any detected compliance breach may be reported to:

- financial authorities
- cybersecurity regulators
- government agencies

SECTION 5 – SECURITY RISKS

Client acknowledges that:

- cloud systems may experience cyberattacks
- AI systems may generate inaccurate outputs
- uploaded documents may contain sensitive data exposure risks
- third-party integrations may fail unexpectedly

Vendor does not guarantee:

- uninterrupted service
- error-free AI responses
- protection from zero-day attacks
- immunity from data breaches

SECTION 6 – COMPLIANCE VIOLATIONS

Failure to comply with:

- GDPR
- RBI regulations
- anti-money laundering policies
- cybersecurity laws

- financial reporting standards

may result in:

- permanent account suspension
- mandatory legal reporting
- audit investigation
- regulatory penalties
- contract termination

Client assumes all compliance liability.

SECTION 7 – HIGH RISK CONDITIONS

The following activities are classified as HIGH RISK:

- suspicious financial transfers
- repeated failed payments
- identity mismatch
- fraudulent document uploads
- unauthorized API access
- abnormal transaction behavior
- compliance circumvention
- repeated security violations

Vendor may freeze services immediately upon detection.

SECTION 8 – DISPUTES & LEGAL ENFORCEMENT

All disputes shall be resolved through binding arbitration in New Delhi, India.

Client waives rights to:

- jury trial
- public litigation
- class-action lawsuits

Legal proceedings shall remain confidential.

SECTION 9 – INTELLECTUAL PROPERTY

Client may NOT:

- reverse engineer AI systems
- replicate dashboards
- scrape extracted data
- redistribute software
- bypass platform security

Violation shall result in:

- immediate termination
- financial penalties
- permanent blacklisting
- civil legal action

SECTION 10 – FORCE MAJEURE

Vendor shall not be responsible for failures caused by:

- internet outages
- cyber warfare
- ransomware attacks
- terrorism
- natural disasters
- government restrictions
- infrastructure collapse

FINAL ACKNOWLEDGEMENT

Client acknowledges and accepts all financial, legal, operational, compliance, cybersecurity, and business risks associated with use of the platform.

SIGNED:

BlackStone Financial Intelligence Ltd

Quantum Risk Systems Pvt Ltd